

Kasturi Bai Gopi Babu Cold Storage Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 24 September 2018 · Writ-C No. 22787 of 2018 · Writ-C No. 22787 of 2018 · **Writ dismissed; petitioner left to CGRF under clause 7.10.**

HEADNOTE

A cold-storage company's writ to quash a 24 May 2018 order and 25 June 2018 demand of Paschimanchal Vidyut Vitran Nigam Ltd., and for mandamus to pass a speaking order under the Electricity Supply Code, 2005, was dismissed as not maintainable. The Division Bench accepted that the Consumer Grievance Redressal Forum under clause 7.10 of the Supply Code was the alternative remedy; the petitioner did not dispute that route.

FACTUAL SUMMARY

Kasturi Bai Gopi Babu Cold Storage Pvt. Ltd. sought certiorari to quash an order dated 24 May 2018 and a demand notice dated 25 June 2018 of Paschimanchal Vidyut Vitran Nigam Ltd., and mandamus directing a speaking order under the Electricity Supply Code, 2005. After listings for instructions, a counter-affidavit and time to rejoin, the Nigam objected that the petitioner could approach the Consumer Grievance Redressal Forum under clause 7.10. The petitioner did not dispute that.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-alternative-remedy-bars-writ

HOLDING

A writ challenging a licensee's order and demand notice and seeking a speaking order under the Supply Code is not maintainable where the consumer has the alternative remedy of approaching the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005; the petition is dismissed on that ground when the petitioner does not dispute the forum. ¶ 6

FLAG Order styles clause 7.10 as 'Section 7.10'.

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Challenge to the demand and the prayer for a speaking order were treated as grievances for which clause 7.10 CGRF is the prescribed route; the writ was dismissed when that remedy was not disputed. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 24 MAY 2018 ORDER, 25 JUNE 2018 DEMAND, AND THE SPEAKING-ORDER PRAYER

Dismissed solely on conceded alternative remedy; the demand and Supply Code speaking-order prayer were not examined. ¶ 6